

Request for Advisory Opinion Concerning Overdue FOIL Responses

September 13, 2026

Kristin Bergin

Acting Executive Director
New York State Committee on Open Government
New York State Department of State
One Commerce Plaza
99 Washington Avenue, Suite 650
Albany, New York 12231

Re: Request for advisory opinion concerning Village of Tuxedo Park FOIL delays during consideration of a proposed local law

Dear Ms. Bergin:

I am requesting guidance and, if appropriate, a written advisory opinion concerning two overdue Freedom of Information Law requests submitted to the Village of Tuxedo Park while its Board of Trustees is considering a proposed local law that could materially restrict the use of private property.

I understand that the Committee provides advice and nonbinding legal opinions but does not adjudicate FOIL appeals, determine violations, or compel an agency to act. I am contacting the Committee because the response history appears inconsistent with the ordinary FOIL timetable and because the withheld records bear directly on the factual and legislative record for a pending local law.

The two requests

On August 4, 2026, my wife, Robin McFadden, and I submitted two separate FOIL requests. The Village administrative request sought records concerning the origin, drafting, purpose, factual basis, communications, complaints, enforcement history, and anticipated effects of a proposed accessory-structure law. The Police Department request sought complaints, calls for service, incident and enforcement records, communications, and reports concerning our separately assessed boathouse property, private-property photography and filming, and the proposed law.

The administrative request was forwarded to the Village Clerk on August 4. The Clerk's acknowledgment letter, dated August 5 and emailed August 6, stated that the request was expected to be granted or denied, in whole or in part, within 20 business days of the letter. That period ended on or about September 2. We have received no production, denial, or written extension providing a later date certain.

The Police Department request was emailed directly to Chief Allen Faust on August 4, with the Village Records Access Officer copied. As of September 13, it has never been acknowledged by the Chief, the Police Department, the Village Clerk, or the Board of Trustees. We have received no records, written denial, or written extension from any of them addressing that request.

Why timing matters

The Board is continuing to consider the proposed law and may rely on public comments as evidence of support. The Mayor's newsletter described the proposal as a law against renting accessory structures and using boathouses as public event spaces. Yet the draft published on August 19 goes substantially further. It redefines guests and accessory uses, regulates independent use and occupancy, imposes adjoining-lot and common-ownership requirements, expressly includes docks, and prohibits uses not specifically permitted.

The fashion shoot identified as the reason for the proposal took place on our boathouse dock only and involved no lodging, overnight rental, residential occupancy, or transfer of possession. The draft may therefore affect waterfront owners on all three Village lakes, including owners without boathouses.

The requested records may show whether any actual complaint or measurable public harm existed, how the proposal expanded beyond rentals, what officials and other persons communicated about it, whether comments supporting the proposal were solicited or coordinated, and whether residents expressing

support were responding to the actual draft or to the Mayor's narrower description. I do not present coordination as an established fact; I am seeking the records needed to determine what occurred.

The Mayor has stated publicly that the proposal arose after a neighbor saw the McFadden boathouse listed with a location broker for photoshoots and brought the listing to his attention. The neighbor did not report a disturbance of the peace or an observed problem involving noise, traffic, parking, safety, lodging, or another external impact, and the neighbor's own dock is located a substantial distance from our boathouse. The stated origin of the proposal was therefore the existence of the listing rather than a documented disturbance caused by the activity.

I am also concerned that the present support-letter effort may have been led or promoted by a person who has previously litigated against me and publicly distributed anti-McFadden literature. I am not presenting that connection as established fact. The requested communications are needed to determine whether such a campaign occurred, whether Village officials encouraged or participated in it, what description of the proposed law was given to the writers, and whether the submitted letters reflect informed support for the actual draft rather than opposition to overnight boathouse rentals.

If the Board closes the hearing or votes before disclosure, residents may be denied a meaningful opportunity to evaluate the documents and statistics leading to the proposed governmental action. I am therefore asking the Village to keep the hearing open and postpone any vote until responsive public records are produced and residents have reasonable time to review them.

Guidance requested

1. Does the August 5 acknowledgment satisfy FOIL when its stated 20-business-day period passed without production, denial, or a written explanation and later date certain?
2. Should the Police Department request be treated as constructively denied when no separate acknowledgment or determination was provided within five business days?
3. Should we now submit an administrative appeal, and to whom should it be directed if the Village has not identified its FOIL appeal officer?
4. Should the Village provide records on a rolling basis when recent records are readily retrievable but historical searches may take longer?
5. What steps should we take now to preserve the response history and applicable limitations periods if administrative or judicial review later becomes necessary?
6. Would the Committee be willing to issue a written advisory opinion addressing these questions and, if appropriate, invite the Village to provide its position?

I am trying to resolve this through a clear written record and prompt disclosure. I would appreciate practical guidance on the next step. I am preserving the original requests, the Clerk's acknowledgment, subsequent correspondence, and the dates on which responses were due.

Respectfully,

David McFadden
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Enclosures

1. August 4, 2026 Village Administrative FOIL Request
2. August 4, 2026 Police Records FOIL Request
3. August 5, 2026 Village Clerk acknowledgment letter